

		the sum of \$20,000 less a credit for any settlement payments made by Defendant and Plaintiff shall be entitled to recover reasonable attorney’s fees and costs incurred in seeking entry of judgment. A fully executed version of the Agreement was provided to Defendant on December 4, 2025. However, aside from the initial \$5,000 payment, Defendant has failed to make the required installments. The Court finds that there is a valid and binding settlement agreement between Plaintiff and Defendant, they agreed to all material terms, and the settlement agreement is in writing and signed by both parties. In light of Defendant’s default, Plaintiff is entitled to the entry of judgment in the amount of \$15,000. The Court further finds Plaintiff’s request for costs and attorney’s fees in the amount of \$2,119.95 is reasonable and must be awarded pursuant to the parties’ agreement. In light of the above, the Motion to Enforce Settlement is GRANTED. Moving party to give notice.
13.	30-2025-01524971 Chegge vs. Chegge	1. Case Management Conference 2. Motion to Deem Facts Admitted 3. Motion to Deem Facts Admitted 4. Motion to Set Aside/Vacate Default <u>MOTIONS TO DEEM FACTS ADMITTED (ROAs 71 & 79):</u> (ROA 71) Plaintiff Julie Njambi Chegge (the “Plaintiff”), moves for an Order—(1) deeming Plaintiff’s First Set of Requests for Admission, Numbers 1 through 29, to Defendant Elaine Muthoni Chegge (the “Defendant”) admitted, and (2) for reimbursement/sanctions against this Defendant in the amount of no less than one thousand nine hundred eighty-five dollars (\$1,985.00.)—under CCP§§ 2020.030, and 2033.280. (ROA 79) Plaintiff Julie Njambi Chegge moves for an Order—(1) deeming Plaintiff’s First Set of Requests for Admission, Numbers 1-29, to Defendant Kariuki Quez Chegge admitted, and (2) for reimbursement/sanctions against this Defendant in the amount of no less than one thousand nine hundred eighty-five dollars (\$1,985.00)—under Code of Civil Procedure sections 2020.030, 2030.010, and 2033.280. <i>These unopposed Motions are DENIED as premature.</i> Pursuant to Code Civ. Proc., § 2033.020 (b), “A plaintiff may make requests for admission by a party without leave of court at any time that is 10 days after the service of the summons on, or appearance by, that party, whichever occurs first.” Here, the Defendants were served with the summons and Complaint on 11/25/2025 and 12/1/2025, respectively. However, both were served with the RFAS on 12/2/2025. That is earlier than 10 days after the service of summons. Furthermore, as to Defendant Kariuki Quez Chegge aka Mark Kariuki Quez Chegge, he is in default, and “out of court”. Entry of defendant's default instantaneously cuts off its right to appear in the action. The defendant is “out of court.” It has no right to participate in the proceedings until either (a) its default is set aside (in which event, they may respond to the complaint), or (b) a default judgment is entered (in which event, they may appeal). [<i>Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc.</i> (1984) 155 CA3d 381, 385-386] Entry of default deprives the court of jurisdiction to consider any motion other than a motion for relief from default. [<i>W.A. Rose Co. v. Mun.Ct. (FitzSimmons)</i> (1959) 176

		CA2d 67, 72, 1 CR 49, 53.] Furthermore, by defaulting, defendant is deemed to <i>admit</i> the material allegations of the complaint for purposes of the action. [See <i>Vasey v. California Dance Co., Inc.</i> (1977) 70 CA3d 742, 749, 139 CR 72, 76.] <u>MOTION TO VACATE DEFAULT</u> Motion is CONTINUED to October 22, 2026 at 1:30 pm in C34, for service of the motion to vacate on Defendant Elaine Muthoni Chegge. Proof of service of the motion to vacate on Defendant Elaine Muthoni Chegge must be filed with the court at least 7 days before the 10/22/26 hearing. Clerk to give notice as to all motions.
14.	30-2024-01411685 Bakr vs. In Motion O.C.	1. Motion for Judgment Not Withstanding the Verdict 2. Motion for New Trial *No tentative Ruling.
15.	30-2025-01485696 Durbin vs. General Motors, LLC	1. Motion for Summary Judgment and/or Adjudication Defendant General Motors, LLC (“Defendant” or “GM”) moves for summary judgment or summary adjudication of the causes of action for breach of express and implied warranties set forth in the Complaint of plaintiffs Anthony Durbin and Lesley-Ann Durbin (together, “Plaintiffs”). Plaintiffs’ evidentiary objections are OVERRULED. <u>Standing</u> Anthony leased the subject vehicle on September 29, 2020. When the lease ended, Plaintiffs jointly purchased the vehicle from Anaheim HY LLC in 2024. They assert two causes of action for breach of implied and express warranties under the Song-Beverly Act (SBA) based on the 2020 lease agreement. (Compl. ¶¶ 5-12.) GM argues that Lesley-Ann does not have standing under the 2020 lease agreement because she was not listed as a lessee and Plaintiffs have not brought their claims under the 2024 purchase contract. Plaintiffs argue Lesley-Ann has standing under the sales contract, which lists her as the buyer and Anthony as the co-buyer. However, the Complaint alleges claims based only on the 2020 lease. The Complaint makes no reference to the 2024 purchase of the vehicle. The pleadings frame the issues in a summary judgment motion. (<i>Hutton v. Fidelity National Title Co.</i> (2013) 213 Cal.App.4th 486, 493.) Because the Complaint is based only on the 2020 lease and Lesley-Ann was not a party to the lease, Lesley-Ann’s claims against GM fail as a matter of law. Thus, GM’s Motion for Summary Adjudication is GRANTED as to Lesley-Ann’s claims. <u>Breach of Express Warranty</u> GM argues Anthony cannot establish breach of an express warranty under the September 2020 lease because Anthony cannot show substantial impairment to the use, value, or safety during the lease. GM argues that Anthony derived the benefit of the bargain under the lease by driving the vehicle for more than the contracted-for limit under the lease and any argument that he felt unsafe in the vehicle is belied by the fact that he chose to purchase the vehicle when the lease was up. GM further argues